

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
June 25, 2026
8:30 a.m./1:30 p.m.

4. ABBE GINNODO V. SEAN GINNODO

25FL1144

On April 1, 2026, Respondent filed a Request for Order (RFO) seeking custody and visitation orders and child support orders. He did not file an Income and Expense Declaration. All required documents were served on April 3rd.

On April 29th, the parties filed a Stipulation and Order for Custody and/or Visitation thereby resolving the custody issues raised in the RFO. The court signed the stipulation and adopted it as the court's order on April 29th.

On June 10th, Petitioner filed and served her Responsive Declaration to Request for Order.

Given that the parties have reached agreements as to custody and visitation the court deems the requests raised in the RFO to be moot and the court declines to rule on them.

Turning to the request for child support, "[f]or all hearings involving child, spousal, or domestic partner support, both parties must complete, file, and serve a current Income and Expense Declaration." Cal. Rule Ct. 5.260(1); See *also* Cal. Fam. Code §2100. The party requesting support shall file and serve their Income and Expense Declaration with the initial moving papers. El Dorado Sup. Ct. Rule 8.03.01. Here, Respondent failed to file his Income and Expense Declaration concurrently with the RFO. As such, the request for child support is denied.

All prior orders remain in full force and effect.

Respondent is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #4: GIVEN THAT THE PARTIES HAVE REACHED AGREEMENTS AS TO CUSTODY AND VISITATION THE COURT DEEMS THE REQUESTS RAISED IN THE RFO TO BE MOOT AND THE COURT DECLINES TO RULE ON THEM. RESPONDENT FAILED TO FILE HIS INCOME AND EXPENSE DECLARATION CONCURRENTLY WITH THE RFO. AS SUCH, THE REQUEST FOR CHILD SUPPORT IS DENIED. ALL PRIOR ORDERS REMAIN IN FULL FORCE AND EFFECT.

RESPONDENT IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE

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COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.